

UPSC GS-II POLITY

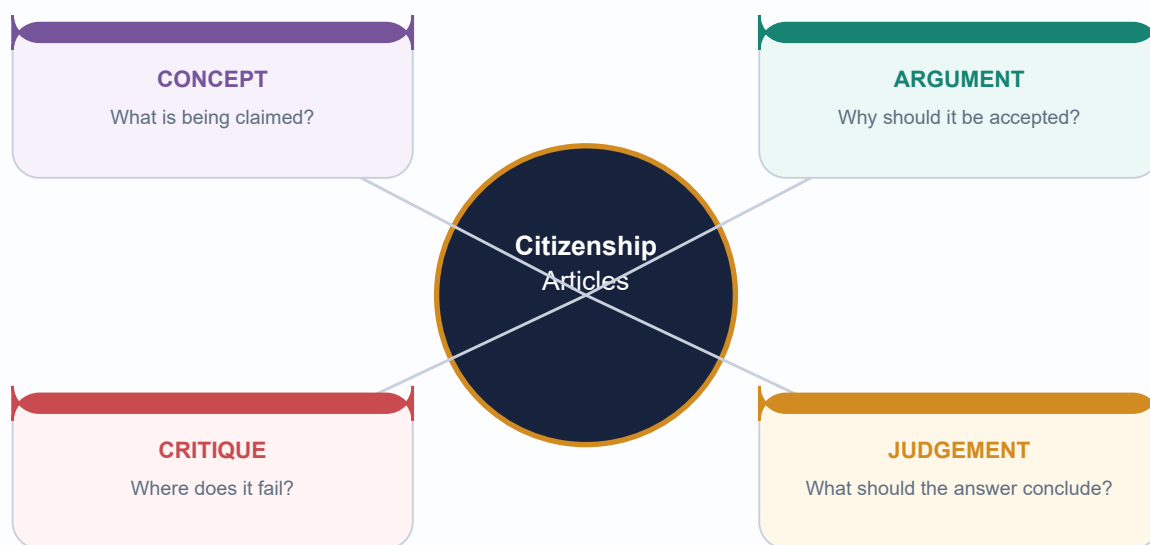
Citizenship — Articles 5 to 11

Integrated Basic + Advanced Course

9 deep-learning modules | Constitutional commencement to the CAA 2019 rules

Visual maps, timelines, comparisons, UPSC traps and Mains frameworks

Grounded in M. Laxmikant, Indian Polity (Sixth Revised Edition), Ch. 6 + verified official updates



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

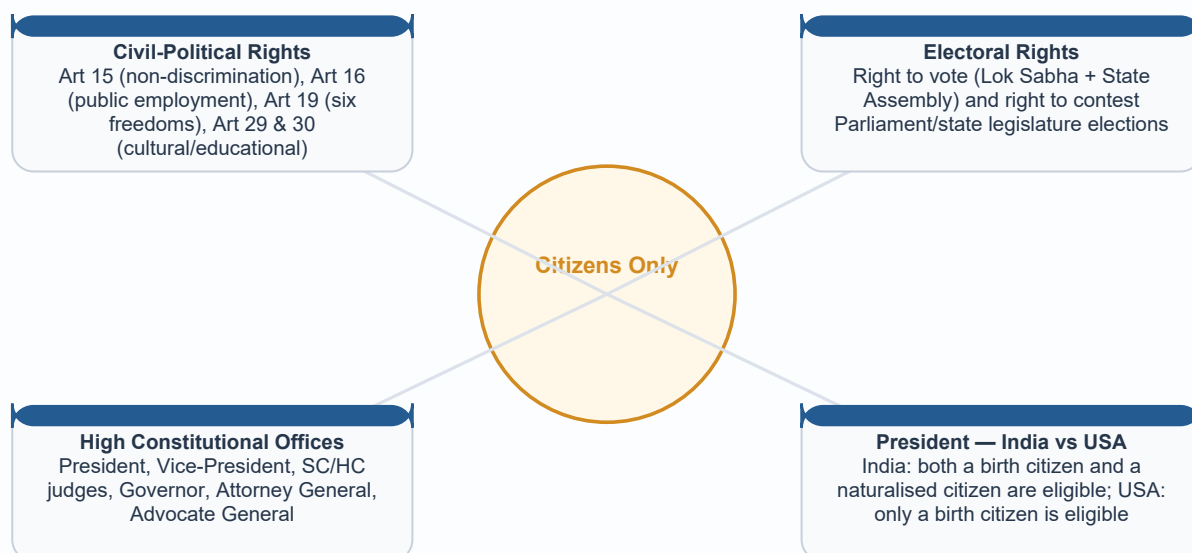
M1. Citizen vs Alien — Who Gets Which Rights □

GS-II Indian
Polity

INTRO & ORIGIN

India recognises two classes of people within its territory: citizens (full members, owing allegiance, holding all civil and political rights) and aliens (citizens of another state). Aliens split further into friendly and enemy aliens.

RIGHTS AVAILABLE ONLY TO CITIZENS



KEY DATA

Aspect	Friendly Alien	Enemy Alien
Definition	Citizen of a country in cordial relations with India	Citizen of a country at war with India
Article 22 protection (against arrest/detention)	Available	NOT available
General civil rights	Most rights available (not the citizen-only bundle)	Fewer rights than a friendly alien

MEMORY HOOK

Citizen-only rights: Art 15, 16, 19, 29, 30 + vote + contest + high offices.

MUST-KNOW FACTS

1. Only citizens get Articles 15, 16, 19, 29, 30, the right to vote, and eligibility for high constitutional offices.
2. Enemy aliens do not get Article 22's protection against arrest and detention.
3. India allows BOTH a birth citizen and a naturalised citizen to become President — unlike the USA, which requires a birth citizen.

HIGH**M3. Acquisition of Citizenship — Five Ways (BeD RaIN) □**GS-II Indian
Polity**INTRO & ORIGIN**

The Citizenship Act, 1955 provides five distinct routes to becoming an Indian citizen after 1950 — each with its own conditions, and the birth rule has been progressively tightened.

FIVE MODES OF ACQUISITION**Acquisition of Citizenship**

Birth Tightened over three eras — see Key Data	Descent Born outside India to a citizen parent; consulate registration needed post-2004
Registration PIOs, spouses of citizens, OCI cardholders, minor children	Naturalisation 12 months + 11 of preceding 14 years residence; good character; 8th Schedule language
Incorporation of territory Government notifies citizens of newly added territory	

KEY DATA

Mode	Key Rule
Birth	26 Jan 1950-1 Jul 1987: citizen irrespective of parents' nationality. On/after 1 Jul 1987: citizen if either parent is a citizen. On/after 3 Dec 2004: both parents must be citizens, OR one citizen + the other not an illegal migrant.
Descent	Born outside India before 10 Dec 1992: citizen if the father was a citizen. On/after 10 Dec 1992: if either parent. From 3 Dec 2004: birth must be registered at an Indian consulate within 1 year.
Registration	For persons of Indian origin, spouses of citizens (7 years' ordinary residence), minor children, OCI cardholders of 5 years, etc. Oath of allegiance required.
Naturalisation	For an alien (not an illegal migrant): 12 months' continuous residence just before application + 11 of the preceding 14 years; good character; knowledge of an 8th Schedule language. Government may waive all conditions for distinguished service to science, art, or peace.
Incorporation of territory	Government specifies who becomes a citizen of newly added territory (e.g. the Citizenship (Pondicherry) Order, 1962).

MEMORY HOOK

'BeD RaIN' — Birth, Descent, Registration, Naturalisation, Incorporation of territory.

MUST-KNOW FACTS

1. Birth-rule tightening: 1950-1987 (any parent) → 1987 (either parent a citizen) → 2004 (both parents, or one citizen + other not an illegal migrant).
2. Naturalisation needs 12 months immediately before application PLUS 11 of the preceding 14 years — not just 5 years.

UPSC TRAPS

WRONG: Anyone born in India is automatically a citizen.

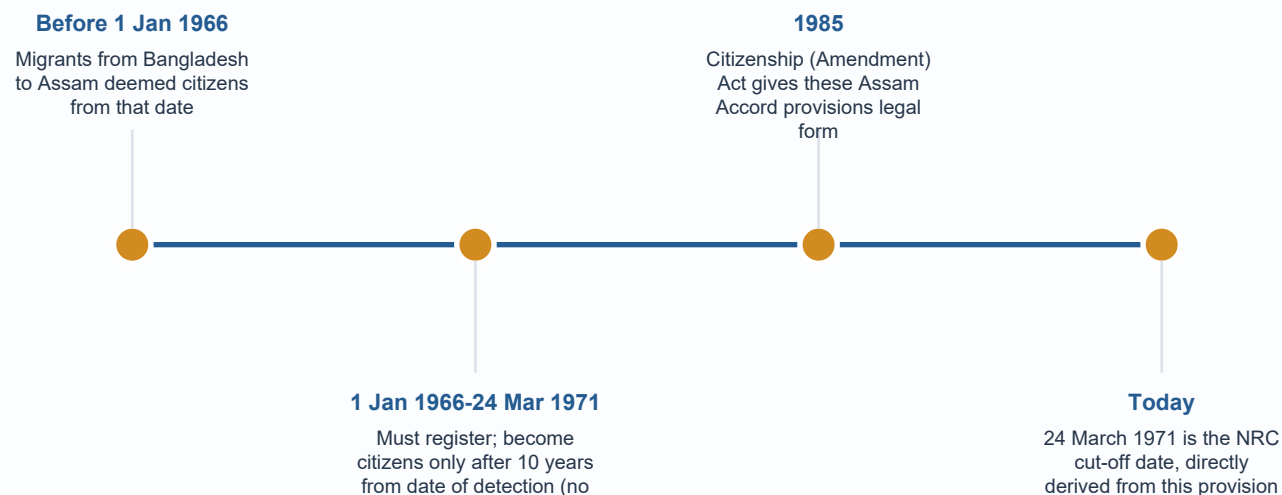
CORRECT: True only for 1950-1987; the rule was tightened in 1987 and again in 2004.

WRONG: Naturalisation requires 5 years of residence.

CORRECT: It requires 11 of the preceding 14 years, plus 12 months immediately before applying.

HIGH**M4. Assam Accord & the NRC Cut-off Date** □GS-II Indian
Polity**INTRO & ORIGIN**

The Citizenship (Amendment) Act, 1985 wrote the Assam Accord's special migration provisions into citizenship law — and fixed the cut-off date that anchors today's NRC debate.

ASSAM'S SPECIAL CITIZENSHIP TIMELINE**MEMORY HOOK**

NRC cut-off = 24 March 1971 (Assam Accord, via the Citizenship Amendment Act, 1985).

MUST-KNOW FACTS

1. The Assam Accord's special citizenship provision is the legal basis of the NRC cut-off date: 24 March 1971.
2. Migrants from Bangladesh to Assam before 1 January 1966 are deemed citizens from that date.

UPSC TRAPS

WRONG: The NRC cut-off date is 2014 (same as the CAA cut-off).

CORRECT: The Assam NRC cut-off is 24 March 1971 — a completely different date from the CAA's 31 Dec 2014.

HIGH

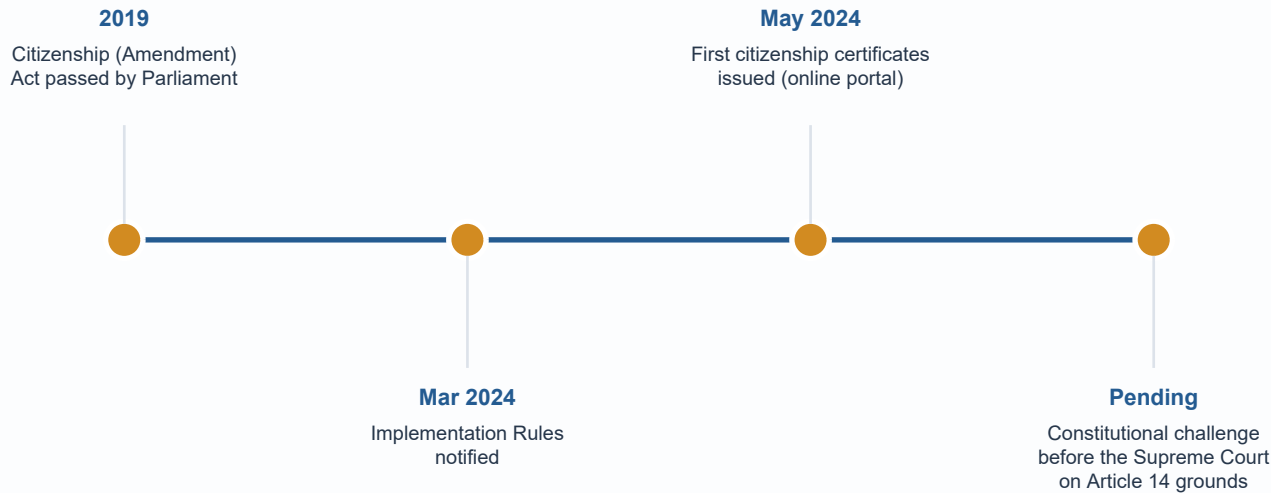
M8. CAA 2019 — the Live Current-Affairs Anchor

GS-II Indian
Polity

NEWS TRIGGER

The Citizenship (Amendment) Act, 2019 creates a facilitated application route for six communities — Hindu, Sikh, Buddhist, Jain, Parsi, Christian — from Pakistan, Bangladesh, and Afghanistan who entered India on or before 31 December 2014. Rules were notified in March 2024, and the first citizenship certificates were issued in May 2024. The Act does not automatically confer citizenship — statutory eligibility, application, and scrutiny remain necessary. It is challenged in the Supreme Court on Article 14 grounds.

CAA 2019 — ENACTMENT TO IMPLEMENTATION



KEY DATA

Element	Detail
Eligible communities (6)	Hindu, Sikh, Buddhist, Jain, Parsi, Christian
Eligible countries (3)	Pakistan, Bangladesh, Afghanistan
Entry cut-off date	On or before 31 December 2014
Naturalisation residence for this route	Cut down to 5 years (from the standard 11 of 14 years)
Legal status	Facilitated application route, NOT automatic citizenship

MEMORY HOOK

CAA = 6 communities, 3 countries, cut-off 31 Dec 2014 — a facilitated ROUTE, not automatic citizenship.

MUST-KNOW FACTS

- CAA 2019 covers only 6 named religious communities from 3 named countries, with a 31 Dec 2014 entry cut-off.
- Rules notified March 2024; first certificates issued May 2024 via an online portal.
- A constitutional challenge on Article 14 (equality) grounds is pending before the Supreme Court.

UPSC TRAPS

- WRONG:** CAA 2019 grants citizenship to all migrants automatically.
- CORRECT:** It only creates a facilitated application route for 6 communities from 3 countries, with a 31 Dec 2014 cut-off — applicants still need statutory eligibility and scrutiny.
- WRONG:** The CAA and NRC use the same cut-off date.
- CORRECT:** CAA's cut-off is 31 Dec 2014; the Assam NRC's cut-off is 24 March 1971 — unrelated dates.

MAINS ANGLE

CAA 2019 and the secular-citizenship debate — does a religion-based fast-track route for named communities violate Article 14's equality guarantee?

STUDY LINK**HIGH**

M9. Consolidated UPSC Traps & Mains Angles — Citizenship

GS-II Indian
Polity**INTRO & ORIGIN**

A single consolidated pass over every trap and Mains theme in this topic — use this module as the final revision layer before an exam.

MUST-KNOW FACTS

1. Constitution fixes citizenship only as of 26 Jan 1950; Parliament (Art 11) governs everything else via the Citizenship Act, 1955.
2. India follows single citizenship (like Canada); the USA and Switzerland follow double citizenship.
3. OCI is a travel/economic privilege, NOT dual citizenship — Article 9 forbids the latter.
4. Assam's NRC cut-off (24 March 1971) and the CAA's cut-off (31 Dec 2014) are unrelated dates for unrelated purposes.

UPSC TRAPS

WRONG: The Constitution has detailed, permanent citizenship provisions.

CORRECT: It only fixes who were citizens in 1950; the rest is by the Citizenship Act, 1955.

WRONG: India allows dual citizenship via OCI.

CORRECT: Article 9 forbids dual citizenship; OCI is not citizenship.

WRONG: Anyone born in India is automatically a citizen.

CORRECT: True only 1950-1987; tightened in 1987 and again in 2004.

WRONG: Naturalisation needs 5 years of residence.

CORRECT: It needs 11 of the preceding 14 years, plus 12 months immediately before applying.

WRONG: Citizenship is a Fundamental Right.

CORRECT: It is not; it is governed by ordinary law under Article 11.

WRONG: CAA grants citizenship to all migrants.

CORRECT: Only to 6 named communities from 3 countries, with a 31 Dec 2014 cut-off.

WRONG: The NRC cut-off is 2014.

CORRECT: The Assam NRC cut-off is 24 March 1971 (Assam Accord).

MAINS ANGLE

OCI as a soft-power and diaspora-engagement tool without extending political rights — and how it differs conceptually from full citizenship.

STUDY LINK

This topic's territorial foundation (states/UTs) is covered in the Union & its Territory Session-Level PDF; the citizen-only rights bundle links directly to the Fundamental Rights Session-Level PDF.

MEDIUM UPSC RELEVANCE

MEDIUM

M2. Constitutional Provisions — Articles 5-11 & the Four 1950 Categories

GS-II Indian
Polity

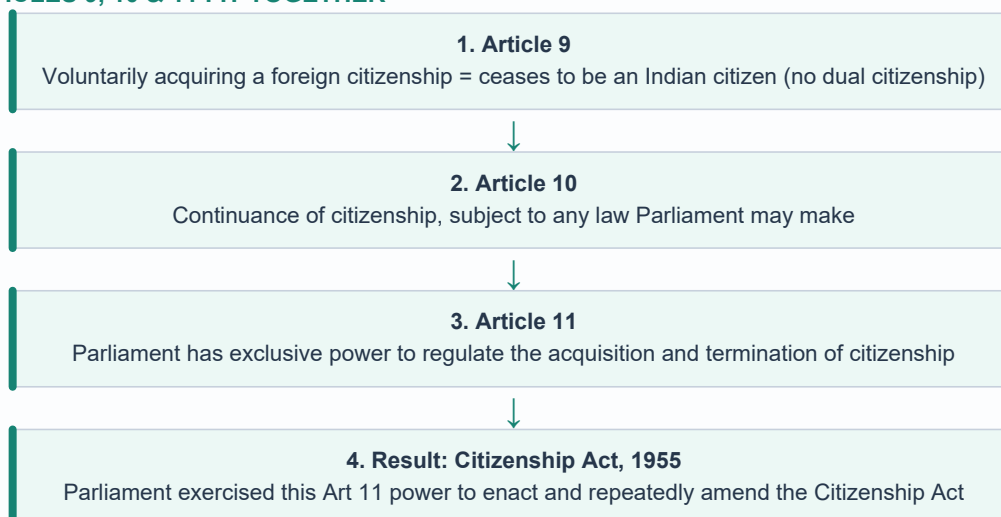
INTRO & ORIGIN

The Constitution deliberately gives NEITHER permanent NOR elaborate citizenship rules — it only fixes who became a citizen at commencement (26 January 1950) and hands everything thereafter to Parliament.

KEY DATA

Category (Art 5-8)	Who Qualifies
(a) Domiciled persons	Born in India, or a parent born in India, or ordinarily resident in India for 5 years
(b) Migrated from Pakistan	Persons who migrated from Pakistan to India
(c) Migrated to Pakistan but returned	Persons who went to Pakistan but returned to India for resettlement
(d) Persons of Indian origin abroad	Registered as citizens by an Indian consulate abroad

HOW ARTICLES 9, 10 & 11 FIT TOGETHER



STATIC THEORY

- The Constitution's citizenship provisions (Art 5-11, Part II) only fix WHO were citizens at commencement (26 Jan 1950) — everything after that is left to ordinary parliamentary law.
- This is why citizenship is NOT itself listed as a Fundamental Right — it is governed by the Citizenship Act, 1955, which Parliament amends from time to time.

MEMORY HOOK

Constitution = who was a citizen in 1950 only; Parliament (Art 11) = everything after.

MUST-KNOW FACTS

1. Four categories became citizens on 26 January 1950 — domiciled persons, migrants from Pakistan, returnees from Pakistan, and registered persons of Indian origin abroad.
2. Article 9 forbids dual citizenship — voluntarily taking a foreign citizenship ends Indian citizenship.

UPSC TRAPS

WRONG: The Constitution has detailed, permanent citizenship provisions.

CORRECT: It only fixes who were citizens in 1950; the rest is governed by the Citizenship Act, 1955.

WRONG: Citizenship is itself a Fundamental Right.

CORRECT: It is not — it is governed by ordinary law under Article 11.

MEDIUM**M5. Loss of Citizenship — Three Ways (R-T-D)**GS-II Indian
Polity**INTRO & ORIGIN**

Citizenship can be lost in three distinct ways, ranging from a citizen's own free choice to a compulsory government action for wrongdoing.

THREE ROUTES OUT OF CITIZENSHIP**1. Renunciation**

Voluntary declaration by the citizen; minor children also lose it, but may resume citizenship at 18

**2. Termination**

Automatic — happens the moment a citizen voluntarily acquires a foreign citizenship (Art 9 link)

**3. Deprivation**

Compulsory action by the Centre — for fraud, disloyalty, trading with the enemy in wartime, a 2-year prison sentence within 5 years of registration/naturalisation, or 7 years' continuous residence abroad

MEMORY HOOK

'R-T-D' — Renunciation (voluntary), Termination (automatic), Deprivation (compulsory by the Centre).

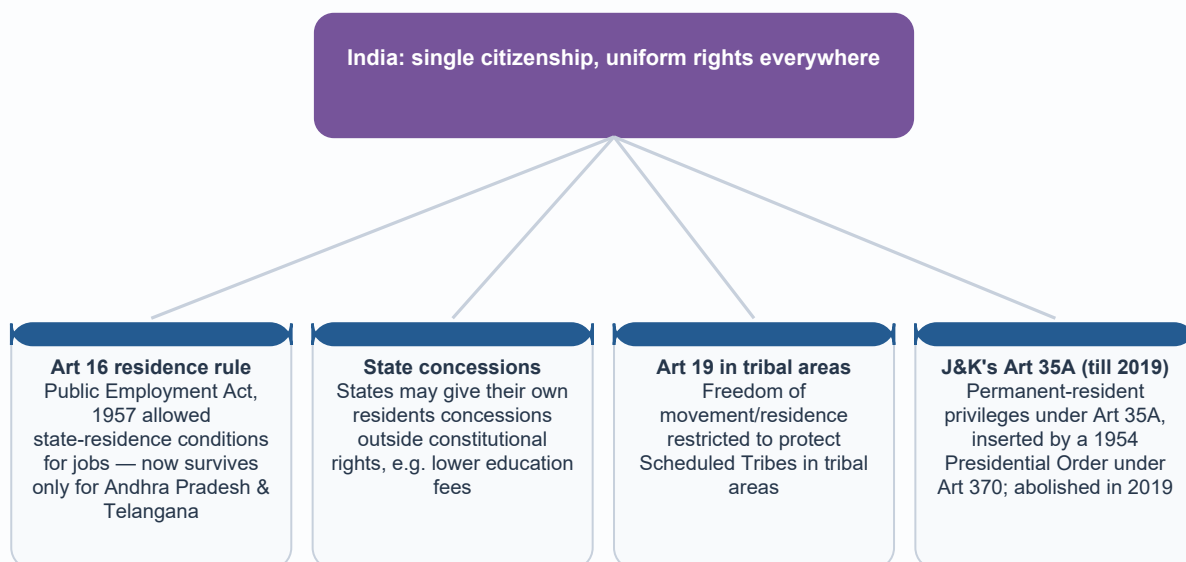
MUST-KNOW FACTS

1. Renunciation by a parent also strips minor children of citizenship — they may resume it at age 18.
2. Deprivation grounds include fraud, disloyalty, wartime trading with the enemy, or a 2-year jail term within 5 years of registration/naturalisation.

MEDIUM**M6. Single Citizenship & Its Four Exceptions** □GS-II Indian
Polity**INTRO & ORIGIN**

Despite having a federal, dual polity, India (like Canada) grants only a SINGLE citizenship — there is no separate state citizenship, unlike the USA or Switzerland.

SINGLE CITIZENSHIP — WHAT ARE THE REAL EXCEPTIONS?



STATIC THEORY

- India's single citizenship follows the Canadian model; the USA and Switzerland grant double (federal + state/canton) citizenship.
- Single citizenship aims at fraternity, unity, and an integrated nation — a deliberate choice despite the country's federal structure.

MEMORY HOOK

Single citizenship, uniform rights — with only 4 narrow exceptions.

MUST-KNOW FACTS

- India and Canada follow single citizenship; the USA and Switzerland follow double citizenship.
- The Art 16 residence exception now survives only for Andhra Pradesh and Telangana.
- J&K's Article 35A permanent-resident privileges were abolished in 2019.

MAINS ANGLE

Single citizenship vs demands for domicile-based reservations and jobs — balancing national unity with regional aspiration.

STUDY LINK

MEDIUM

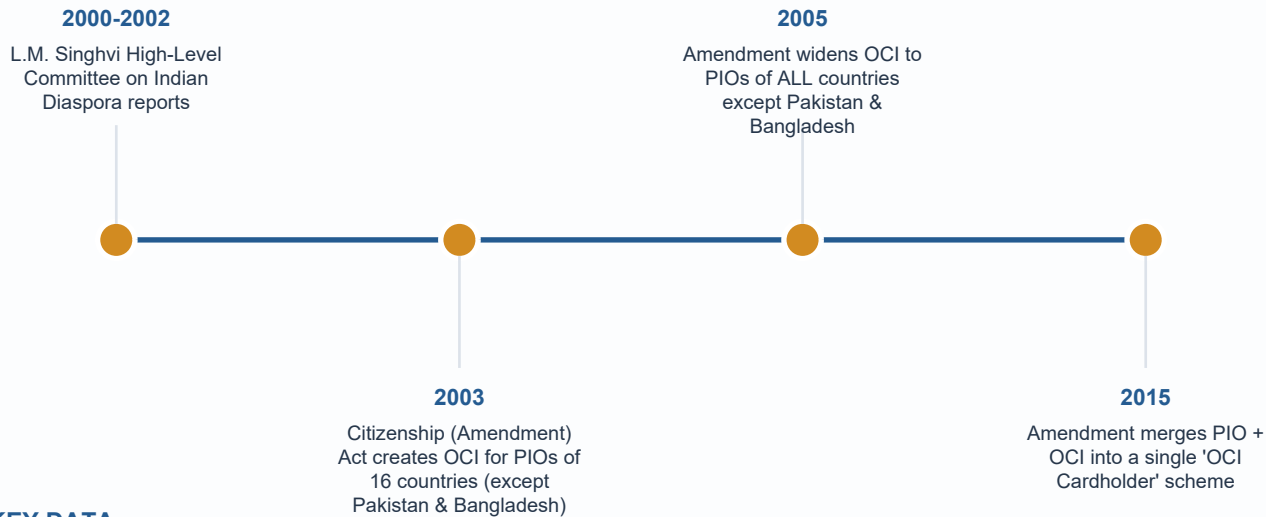
M7. Overseas Citizenship of India (OCI) □

GS-II Indian
Polity

INTRO & ORIGIN

OCI is India's answer to diaspora engagement WITHOUT breaching Article 9's ban on dual citizenship — it grants economic and travel privileges, but no political rights.

FROM THE SINGHVI COMMITTEE TO THE OCI CARD



KEY DATA

OCI Cardholders CANNOT	Detail
Vote	No right to vote in any Indian election
Hold political office	Cannot become MP, MLA, President, or Vice-President
Hold judicial office	Cannot become a Supreme Court or High Court judge
Public employment	No equality of opportunity in public employment/jobs

MEMORY HOOK

OCI is NOT dual citizenship — Article 9 forbids dual citizenship outright.

MUST-KNOW FACTS

- 1. L.M. Singhvi Committee (2000, reported 2002) led directly to the OCI scheme created in 2003.
- 2. The 2015 amendment merged the separate PIO and OCI schemes into a single 'OCI Cardholder' card.
- 3. OCI registration can be cancelled for fraud, disaffection, or trading with the enemy.

UPSC TRAPS

WRONG: India allows dual citizenship through the OCI scheme.
CORRECT: Article 9 forbids dual citizenship; OCI is a travel/economic privilege, not citizenship.